

PROFESSIONAL SERVICES AGREEMENT

This Professional Services Agreement (the Agreement) is made

1. SCOPE OF SERVICES. The Consultant shall provide the professional consulting, analysis and advisory services described in Exhibit A (the Services). Services shall be performed at the locations and on the dates mutually agreed by the
2. COMPENSATION. Client shall pay Consultant the fees set forth in Exhibit B. All invoices are payable within thirty (30) days of receipt.
3. RELATIONSHIP OF PARTIES. Consultant is an independent contractor and not an employee, agent or partner of Client. Consultant is responsible for all taxes.
4. INSURANCE. Consultant shall maintain professional liability insurance with limits of not less than one million dollars during the term of this Agreement.

5. **TERM AND TERMINATION.** This Agreement commences on the Effective Date and continues for twelve (12) months unless earlier terminated. Either party may terminate this Agreement upon thirty (30) days written notice. Any termination shall not relieve either party of obligations accrued before the
6. **INTELLECTUAL PROPERTY.** All work product created under this Agreement (the Work Product) shall be owned by Client upon full payment of fees. Client grants Consultant a limited license to use the Work Product for its internal
7. **CONFIDENTIALITY.** Each party shall hold in confidence all Confidential Information of the other party as described in the NDA dated earlier. This obligation survives the termination of this Agreement for a period of three

8. **LIMITATION OF LIABILITY.** Neither party shall be liable for consequential damages arising out of this Agreement. The aggregate liability of either party shall not exceed the fees actually paid by Client.
9. **WARRANTY.** Consultant warrants that the Services will be performed in a professional and workmanlike manner consistent with industry standards.
10. **GOVERNING LAW.** This Agreement shall be governed by the laws of the State of Delaware, without regard to conflict of law principles. Any dispute arising out of or in connection with this Agreement shall be resolved in the state or federal courts located in Delaware.
11. **ENTIRE AGREEMENT.** This Agreement constitutes the entire agreement between the Parties and supersedes all prior agreements and understandings.
- 11.1 **NO THIRD-PARTY BENEFICIARIES.** This Agreement is for the sole benefit of the Parties and their permitted assigns.

SIGNATURE PAGE

IN WITNESS WHEREOF, the Parties have executed this Agreement by their duly authorized representatives as of the Effective Date.

CLIENT: _____

Name: _____ Date: _____

CONSULTANT: _____

Name: _____ Date: _____